

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1943

By: McCane

AS INTRODUCED

An Act relating to state government; creating the Oklahoma Plain Writing Act of 2025; defining terms; directing agency heads to perform certain duties; requiring agency websites to inform the public of its compliance with plain writing requirements; requiring inclusion of mechanism for receiving public input; directing agencies to use plain writing in documents by certain date; requiring the Director of the Office of Management and Enterprise Services to develop and issue certain guidelines; allowing agencies to follow plain writing guidelines developed by certain entities; providing for the publication of certain reports on agency websites; barring judicial review of compliance with plain writing requirements; providing construing provision; providing for codification; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 13001 of Title 74, unless there is created a duplication in numbering, reads as follows:

A. This act shall be known and may be cited as the "Oklahoma Plain Writing Act of 2025".

B. As used in this act:

1 1. "Agency" means any state board, bureau, commission,
2 department, authority, public trust, interstate commission, the
3 Judiciary, the Legislature, and the Office of the Governor;

4 2. "Covered document" means any document that:

5 a. is necessary for obtaining any state government
6 benefit or service or filing taxes,

7 b. provides information about any state government
8 benefit or service, or

9 c. explains to the public how to comply with a
10 requirement this state administers or enforces.

11 The term also includes, whether in paper or electronic form, a
12 letter, publication, form, notice, or instruction, and does not
13 include a regulation; and

14 3. "Plain writing" means writing that is clear, concise, well-
15 organized, and follows other best practices appropriate to the
16 subject or field and intended audience.

17 C. Not later than nine (9) months after the effective date of
18 this act, the head of each agency shall:

19 1. Designate one or more senior officials within the agency to
20 oversee the agency implementation of this act;

21 2. Communicate the requirements of this act to the employees of
22 the agency;

23 3. Train employees of the agency in plain writing;
24

1 4. Establish a process for overseeing the ongoing compliance of
2 the agency with the requirements of this act;

3 5. Create and maintain a plain writing section on the website
4 of the agency as required under subsection D of this section that
5 is accessible from the homepage on the website of the agency; and

6 6. Designate one or more agency points-of-contact to receive
7 and respond to public input on:

8 a. agency implementation of this act, and

9 b. the agency reports required under subsection G of this
10 section.

11 D. The plain writing section described under paragraph 5 of
12 subsection C of this section shall:

13 1. Inform the public of agency compliance with the requirements
14 of this act; and

15 2. Provide a mechanism for the agency to receive and respond to
16 public input on:

17 a. agency implementation of this act, and

18 b. the agency reports required under subsection G of this
19 section.

20 E. Beginning not later than one (1) year after the effective
21 date of this act, each agency shall use plain writing in every
22 covered document of the agency that the agency issues or
23 substantially revises.
24

1 F. 1. Not later than six (6) months after the effective date
2 of this act, the Director of the Office of Management and Enterprise
3 Services shall develop and issue guidance on implementing the
4 requirements of this section. The Director may designate a lead
5 agency, and may use interagency working groups to assist in
6 developing and issuing the guidance.

7 2. Before the issuance of guidance under paragraph 1 of this
8 subsection, agencies may follow the guidance of:

- 9 a. the writing guidelines developed by the Plain Language
10 Action and Information Network, a division of the
11 United States General Services Administration, or
- 12 b. guidance provided by the head of the agency that is
13 consistent with the guidelines referred to in
14 subparagraph a of this paragraph.

15 G. 1. Not later than nine (9) months after the effective date
16 of this act, the head of each agency shall publish on the plain
17 writing section of the website of the agency a report that describes
18 the agency plan for compliance with the requirements of this act.

19 2. Not later than eighteen (18) months after the effective date
20 of this act, and annually thereafter, the head of each agency shall
21 publish on the plain writing section of the website of the agency a
22 report on agency compliance with the requirements of this act.

23 H. There shall be no judicial review of compliance or
24 noncompliance with any provision of this act.

1 I. No provision of this act shall be construed to create any
2 right or benefit, substantive or procedural, enforceable by any
3 administrative or judicial action.

4 SECTION 2. This act shall become effective November 1, 2025.

5
6 60-1-11090 MAH 01/15/25
7
8
9
10
11
12
13
14
15
16
17
18
19
20
21
22
23
24